

		<i>Plaintiff shall submit a proposed order and shall give notice of this ruling.</i>
3.	Keith v. Rosario 25-1481402	The unopposed motion of plaintiffs Luke Campbell Keith, Marshaleen Keith, and Tyler Keith (collectively, Plaintiffs) for leave to file a first amended complaint is GRANTED. (<i>Code Civ. Proc.</i>, § 473(a)(1).) Courts are bound to apply a policy of great liberality in permitting amendments to the complaint "at any stage of the proceedings, up to and including trial," absent prejudice to the adverse party. (<i>Atkinson v. Elk Corp.</i> (2003) 109 Cal.App.4th 739, 761.) Plaintiffs have shown the interests of justice would be served by allowing the amendment. In addition, the motion is unopposed. Accordingly, the motion is GRANTED. The First Amended Complaint is to be separately filed within 5 days of the date of this order. <i>Counsel for Plaintiffs is ordered to give notice of this ruling.</i>
4.	Wilmington Savings Fund Society, FSB v. Mitchell 25-1498917	The motion of plaintiff Wilmington Savings Fund Society, FSB, not in its individual capacity but solely as Owner Trustee for the FLIC Residential Mortgage Loan Trust 1 (Plaintiff) for leave to file a first amended complaint is CONTINUED TO JULY 2, 2026, AT 1:30 P.M. IN DEPARTMENT C20. The Court's files do not reflect that any opposition to this motion was filed by defendant Elvin W. L. Mitchell, Jr. (Defendant). However, it appears Defendant served Plaintiff with an opposition because, on May 29, 2026, Plaintiff filed a reply to Defendant's opposition. The Court will therefore CONTINUE the hearing on this motion as stated above so that Defendant can file the opposition with the Court. Defendant is ORDERED to file the same opposition which he previously served on Plaintiff, within 7 days of this order. Aside from the opposition, no further briefing is permitted. <i>Counsel for Plaintiff is ordered to give notice of this ruling.</i>
5.	Justin J.S.Morgan Law Corporation v. Wood and Delgado 25-1483376	Before the court is a motion to quash brought by Defendants Wood & Delgado, J.P. Wood Law Corporation and Wood Law Corporation as to the subpoena for records issued to Weyer, Crelling & Custer. The motion is GRANTED and the request for sanctions is DENIED, as set forth herein. The Court notes initially that the motion is defective as Defendants failed to file a Separate Statement in support of the Motion as required by <i>CRC, rule 3.1345(a)(5)</i>. Nonetheless, the Court will address the merits.

In the instant motion, Defendants argue the subject subpoena is stayed pursuant to *Code of Civil Procedure §916(a)* because they have filed an appeal of the Court's January 28, 2026 order denying their special motion to strike under *Code of Civil Procedure §425.16*. The Order and appeal relate only to the 4th cause of action for Intentional Interference with Economic Prospects. The other three causes of action were not affected by the Court's Order.

The Court in *Varian Medical Systems, Inc. v. Delfino* (2005) 35 Cal.4th 180 stated that Section 916 "prevents a trial court from rendering an appeal futile by altering the appealed ... order by conducting proceedings that may affect it." (*Varian Medical Systems, Inc. v. Delfino* (2005) 35 Cal.4th 180, 189.) "[W]hether a matter is 'embraced' in or 'affected' by a judgment [or order] within the meaning of [section 916] depends on whether post judgment [or post order] proceedings on the matter would have any effect on the 'effectiveness' of the appeal." (*Id.* [citation omitted].) The "trial court shall have jurisdiction of proceedings related to ... any other matter embraced in the action and not affected by the ... order appealed from." (*Id.*, § 916(b).)

Here, the subpoena at issue seeks a wide-ranging list of documents from the Defendants' accountant. While the documents do relate to the first three causes of action, the subpoena also seeks documents which may be relevant to plaintiffs' damages in the 4th cause of action. Further, para. 48 of the Complaint alleges the defendants have "disrupted prospective economic advantages for Morgan." Evidence of the "prospective economic advantages" may well be found in the accountant's records. Also, plaintiffs allege at paragraph 45 that the 4th cause of action is based on facts alleged in paragraphs 1-44, thus making the four causes of action based on the same facts.

As a result of the foregoing the court finds that the subject subpoena relates to facts and evidence embraced and affected by the appeal of the 4th cause of action. Because a stay exists as to such, the motion is **GRANTED** and the subpoena is **QUASHED**, without prejudice to being served upon conclusion of the appeal.

Defendants also request an award of sanctions. In making an order pursuant to a motion made under *Code of Civil Procedure §1987.1*, the Court "may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney's fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive." (*Code Civ. Proc.*, § 1987.2, subd. (a).)

The court does not find the opposition was made in bad faith or without substantial justification or that sanctions are otherwise warranted. Accordingly, the request for sanctions is **DENIED**.

		<i>Plaintiff to give notice of this ruling which shall include notice to Weyer, Crelling & Custer.</i>
6.	Balboa Capital Corp. v. Sasquatch Services LLC 25-1469145	<i>(Off calendar)</i>
7.	LVNV Funding LLC v. Gomez 21-1219223	The motion to enforce settlement filed by plaintiff LVNV Funding LLC (Plaintiff) is CONTINUED TO JULY 30, 2026, AT 1:30 P.M. IN DEPARTMENT C20. There is no proof of service filed showing defendant Jasmine Gomez (Defendant) was served with this motion. The motion is therefore CONTINUED as stated above. Plaintiff is ordered to file a proof of service showing Defendant was properly and timely served with the motion. Said proof of service shall be filed at least 5 court days prior to the hearing. <i>Counsel for Plaintiff shall give notice.</i>
8.	Tapia v. The Regents of the University of California 24-1446222	Before the Court is the Motion for Reconsideration and Relief from Terminating Sanctions, etc., filed on 3/17/26 by Plaintiff Melissa Tapia in her individual capacity and in her capacity as decedent Luis Recinos' successor-in-interest ("Plaintiff"). The Motion is effectively a motion for relief under <i>C.C.P. § 473(b)</i>, based upon an attorney declaration of fault regarding discovery violations that resulted in terminating sanctions. In that context, the application for mandatory relief would be in proper form if it demonstrated that verified discovery responses had been served, for all of the outstanding discovery. (See <i>Rodriguez v. Brill</i> (2015) 234 Cal.App.4th 715, 729.) But Plaintiff's motion does not comply, as Plaintiff's counsel here has asserted only that compliance was anticipated. (ROA 225, Smith Decl., ¶ 19.) The Motion is therefore DENIED. <i>Counsel for Defendant Regents of the University of California is to give notice of this ruling.</i>
9.	Corzine v. Riemann 20-1133569	<i>(Moot)</i>
10.	Long v. Glyder LLC 22-1275657	Before the Court is the Motion for Monetary and Terminating Sanctions, filed on 10/21/25 by Plaintiff Chen "Peter" Cheng Long ("Plaintiff"). The Motion is DENIED. Plaintiff concedes on reply that the portion of the motion seeking terminating sanctions is now moot. However, Plaintiff continues to assert that substantial monetary sanctions should be imposed on Defendant Stuart Solkow ("Solkow") pursuant to <i>C.C.P. §§ 128.5, 2023.010, and 2023.030</i>. Plaintiff argues that sanctions are warranted under <i>C.C.P. § 128.5</i> because Defendants engaged in misconduct by asserting meritless